

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EUGENE SWIFT,

Petitioner

VS.

MARISSA GOLDMAN,

Respondent

) Case Number: FPT-23-378317

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY; VISITATION (PARENTING TIME) OTHER:
RECONCILIATION COUNSELING WITH MINOR CHILDREN

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9AM on 6/30/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Eugene Swift (Father) and Respondent Marissa Goldman (Mother) have two minor children together, Dominic (DOB 1/12/2014, age 12) and Ava (DOB 10/15/2018, age 7). On 9/28/2021, Sonoma County Superior Court issued a three-year domestic violence restraining order (DVRO) protecting Mother, Dominic and Ava, and Mother's child from another relationship. The Sonoma County Superior Court awarded Mother sole legal and physical custody of Dominic and Ava, with 2 weekly, professionally supervised visits of 3 hours per week for Father.
- 2) On 2/6/2026, Father filed a request for "reconciliation counseling with the minor children, so I can start having regular contact and visitation with them." He states he has not seen the children

1 for over 4 years and that he believes it is important for them to have a relationship with him. He
2 seeks joint legal and physical custody.

- 3 3) The parties attended mediation on 4/27/2026 and were unable to reach an agreement. At
4 mediation, Father requested joint legal and physical custody, asked to be listed as an emergency
5 contact on all school records and to have access to school records, and to have a two-week on,
6 two-week off parenting time schedule during the summer. Mother requested to maintain the
7 current order for sole legal and physical custody to her, and for the parties to spend every other
8 weekend with Father during the summer.
- 9 4) On 6/18/2026, Mother filed a responsive declaration setting forth the history of violence she
10 states preceded the filing of her DVRO request. She states Father never exercised his court-
11 ordered visitation rights, and that even though Mother arranged for Father to see the children
12 without supervision after he filed his request for order, he was “sporadic and inconsistent” in his
13 communications and requests and had not seen the children in a “few months.” Mother states that
14 she recently learned that Father’s “pattern of domestic violence has continued” and that he has a
15 criminal protective order against him, protecting his ex-girlfriend, that is in place until July 2028.
16 She is “also informed that [his] driver’s license is suspended for DUI until 2028, and that this is
17 not his first DUI.” Mother states that she now believes that Father’s future visits with the children
18 should be supervised.

19 **B. Findings and Orders**

- 20 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
21 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
22 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
23 children is the United States.
- 24 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 6/30/2026 in**
25 **Department 404.**
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